



POLICE DEPARTMENT CITY OF NEW YORK

February 1, 2016

MEMORANDUM FOR: Police Commissioner

Re: Lieutenant Robert Sung
Tax Registry No. 900667
Military & Extended Leave Desk
Disciplinary Case No. 2016-15116

Charges and Specifications:

Disciplinary Case No. 2016-15116

Said Lieutenant Robert Sung, while suspended with pay, inside of an NYPD facility located in Kings County, on or about January 22, 2016, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Lieutenant Sung failed to comply with an order to answer questions during an Official Department Interview being held pursuant to Patrol Guide Procedure 206-13. (*As amended*)

P.G. 206-13 Page 2, Paragraph 12 - INTERROGATIONS OF MEMBERS OF
THE SERVICE

P.G. 203-03 Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS

P.G. 203-10 Page 1, Paragraph 5 - GENERAL REGULATIONS

Appearances:

For Department Advocate's Office: Marissa Gillespie, Esq. and Jordan Famham, Esq.

For Respondent: Marvyn Kornberg, Esq.

Hearing Date:

January 28, 2016

Decision:

Not Guilty

Trial Commissioner:

DCT Rosemarie Maldonado

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 28, 2016. Respondent through his counsel, entered a plea of Not Guilty to the subject charge. The Department Advocate's Office called Deputy Inspector Jose Frias and Respondent as witnesses. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDING AND ANALYSIS

The facts of this matter are not disputed. At 1100 hours on January 22, 2016, Deputy Inspector Jose Frias of the Internal Affairs Bureau ("IAB") convened at a Brooklyn facility to conduct an interview with Respondent in connection with Corruption Case No. [REDACTED] (Tr. 17). Also present were Sergeant Buthorn and Lieutenant Orecchia of IAB along with Respondent and his attorney, Edwin Schulman. Orecchia informed Respondent that he was being questioned, pursuant to Patrol Guide Procedure 206-13, "as part of an official investigation by the Police Department." As required by the Patrol Guide when a member of service is the subject of a criminal investigation or proceeding, Respondent was further advised:

You are entitled to all the rights and privileges guaranteed by the laws of the State of New York, the Constitution of the state and the Constitution of the United States including the right not to be compelled to incriminate yourself and the right to have legal counsel present at each and every stage of this investigation. I further wish to advise you that if you refuse to testify or to answer questions relating to the performance of your official duties, you will be subject to departmental charges, which could result in your dismissal from the police department. If you do answer, neither your statements nor any information or evidence, which is gained by reason of

such statements, can be used against you in any subsequent criminal proceedings; however, these statements may be used against you in relation to a subsequent department charge. (Department's Exhibit (DX 1A at 3)

Orecchia continued reading from Patrol Guide Procedure 203-08 and explaining that the making of false statements was prohibited. Respondent affirmed that he understood the provisions that had been read to him. (DX1A at 4)

The first substantive question Sergeant Buthorn posed to Respondent was, "Lieutenant, do you know this individual?" Respondent's counsel immediately interjected:

Whoa, whoa, whoa, whoa. Wait a second. As part of your introduction and everything, we're entitled to know the witnesses that are coming forward, either complainants or witnesses. I mean, there is – the complaint, the charges and specifications in – in some instances refer to his conduct with the members of the service but you don't mention the names of the members of the service.

Inspector Frias responded that the identity of those members of service would not be released. (DX1A at 4-5) At trial Frias explained to this tribunal that he did not release witness identities upon the direction of an agency attorney. (Tr. 32-33, 50)

Schulman informed the investigators that Respondent would "respectfully refuse" to answer any questions because the Department: 1. failed to identify witnesses; 2. allegedly violated the mandate of P.G. 206-13(9); and, 3. was "false and misleading" when the interrogating officer stated that the interview would not be used against Respondent in a criminal proceeding. (DX1A at 5)¹ The IAB investigators reread the applicable Patrol Guide notices, including the advisement that "neither your statements nor any information or evidence which is gained by reason of such statements can be

¹ Given the basis of this decision, it is not necessary to address arguments two and three at this time.

used against you in any subsequent criminal proceedings" five more times. (DX1A at 6-19)

Ultimately, Deputy Inspector Frias ordered Respondent to answer their questions. Respondent stated that "on the advisement of my attorney, I cannot." Frias noted on the record that this was being deemed a refusal to answer questions and ended the interview. (DX1A 20).

At issue is whether Respondent's refusal to answer questions amounts to misconduct. Public officials are expected to answer questions relating to the performance of their duties when called upon to do so. Patrol Guide section 203-03, page 1, para 2, specifically requires that members of service, "Obey lawful orders and instructions of supervising officers." It is a basic tenet of public employment law that employees are generally required to "obey now, grieve later." Exceptions to this principle are limited. For example, an employee need not obey an unlawful order, an order that is beyond the scope of a supervisor's authority, or an order that poses an imminent threat to health or safety. See *Ferreri v. NY State Thruway Authority*, 62 NY 2d 855 (1984); *Reisig v. Kirby*, 62 Misc.2d 632 (Sup. Ct. Suffolk County 1968), *aff'd*, 31 A.D.2d 1008 (2d Dep't 1969). For the reasons set forth below I find that under this narrow set of facts the specific order at issue here was beyond the scope of the supervisor's authority.

Patrol Guide section 206-13 sets forth the guidelines for the interrogation of members of the service. Its stated purpose is "To protect the rights of the member of the service (uniformed or civilian) in an official Department investigation." Accordingly, it requires that "prior to questioning a member of the service" the Department must "inform [the] member concerned" of the "identities of witnesses or complainants (address need

not be revealed) except those of confidential source or field associate unless they are witnesses to the incident.” Patrol Guide Section 206-13(2)(f)

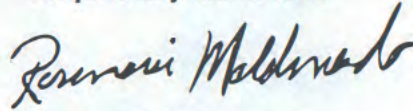
In the instant case, it is undisputed that the Department did not release the identities of relevant witnesses. Since Inspector Frias testified that there were indeed confidential sources who were witnesses in this case, refusing to release the information ran afoul of the specific requirements of Patrol Guide Section 206-13(2)(f). (Tr. 31-33, 44-45, 48-51)

Questioning under PG 206-13 triggers protections of varying degrees -- some significant, some more ministerial in nature. Here, Section 206-13(2)(f) confers what is akin to a more substantive protection. Respondent was entitled to be given the identities of those who were witnesses to the incident which was the subject of the investigation. The noncompliance in this case is more than just a technical procedural defect. It is a deficiency that can result in undue prejudice -- particularly in cases like this where a respondent is the target of a pending criminal proceeding. It is important to note that at the interview Respondent's counsel raised his concern in a timely manner by immediately demanding that this omission be cured. The Department had the opportunity to do so, but refused. Nevertheless, Respondent was ordered by the Department to answer the questions. Based on this record, it is my finding that this particular interview was conducted in contravention of protections afforded Respondent by the Patrol Guide.

Although Respondent refused to answer questions after being directed to do so, under the limited circumstances of the significant procedural defect here, the order was beyond the scope of the supervisor's authority. Accordingly, I find that given these

narrow facts, Respondent's failure to answer questions at a Department interview did not constitute misconduct.²

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

FEB 03 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER

² There is precedent for finding that under certain extraordinary circumstances the failure to follow an order does not constitute misconduct. For example, in *Disciplinary Case No. 68742/94* (November 30, 1994), an officer was found not guilty of refusing to answer questions when counsel advised her to do so because promised discovery materials had not been produced.